

Burdens of Proof, Standards of Proof & Presumptions

The purpose of this document is to help you understand burdens of proof, standards of proof, and presumptions. In what follows, we will tackle the following key concepts: (1) evidentiary burdens; (2) the “air of reality” standard; (3) legal burdens; (4) proof beyond a reasonable doubt; (5) proof on the balance of probabilities; (6) the presumption of innocence; (7) reverse onuses; and (8) tactical burdens.

Please note that this document provides you with a very basic overview; it is not intended to replace the other readings or lectures. You may also wish to read “Doubt Mountain and the Presumption of Innocence” by Professor Steve Coughlan, excerpted at pp. 172-175 of your casebook for a further review of these topics. That reading presents many of the concepts covered here through an extended metaphor with an accompanying diagram.

A final preliminary note, on terminology: You should know that, unfortunately, the terminology used to describe various burdens and presumptions is inconsistent. The term “presumption” in particular is used in different ways. For purposes of this course, we will not worry too much about these variations; they will be taken up in greater detail in the course on Evidence. If, however, you encounter the term “burden” or “presumption” in a context that confuses you, know that the problem *may* simply be a variation in the use of the terminology. If you are confused, you should of course seek clarification from the instructor.

With these caveats in mind, let’s begin with **evidentiary burdens**. In some circumstances, a court will not even consider a legal issue unless and until the court is presented with *some* evidence that suggests the issue is a live one in the case. The party that bears the burden of presenting that evidence is said to bear an “evidentiary burden.” If the party fails to discharge this burden – that is, if it fails to present the requisite evidence – then the legal issue in question will not be considered by the trier of fact at all. If the party succeeds in discharging its burden – that is, if it manages to present the requisite evidence – then the legal issue in question will be considered.

Evidentiary burdens are most common in the context of defences. We will hear more about evidentiary burdens when we get to that part of the course.

In this unit, we focus on the fundamental rule that the Crown is obligated to prove **guilt beyond a reasonable doubt**. That obligation includes a burden to disprove any defences that have been raised. (There are some exceptions to this latter rule, whereby the accused has to actively prove the defence. We will encounter

those exceptions later on in the course.) We do not, however, expect the Crown to preemptively combat every conceivable defence; nor do we want the judge to instruct the jury on every possible defence, including those for which there is no supporting evidence. Introducing every possible defence into the proceedings, without first requiring a threshold evidentiary analysis, would create needless complexity and confusion and could invite error. Just imagine if the jury had to systematically work its way through multiple legal tests to decide whether the accused was “not criminally responsible by reason of a mental disorder,” or was acting in self-defence, or was acting under duress, or was extremely intoxicated, etc., etc., even in cases where none of the parties was discussing these defences because they were not remotely plausible on the facts! We therefore require the accused to announce that they are putting particular defences into play. Moreover, we don’t just allow the accused to say, “My actions were necessary. Also, I was under duress, and I was acting in self-defence, and I was extremely intoxicated – go ahead and prove otherwise!” Instead, we require the accused to point to *some* evidence that the proposed defence is worth considering. To do this, the accused may point to some aspect of the Crown’s case that supports the defence and/or they may put forward their own evidence.

The threshold for satisfying the evidentiary burden is low. There need only be an “**air of reality**” to the defence. That is, the evidence must be such that, if it were accepted, a reasonable jury, properly instructed, could acquit. If the accused demonstrates that there is an air of reality, then she has discharged her evidentiary burden and the defence becomes a live legal issue in the case. We will learn more about the “air of reality” standard in Week 11 of the course when we come to defences. (The governing case, which we will read, is *R. v. Cinous*.)

It is also important to bear in mind that the parties need not show an “air of reality” in order to put most legal issues into play. This requirement only applies in particular contexts, including (but not limited to) substantive defences. In all instances, however, the Crown needs to point to *some* evidence that can support every element of the charge(s). If it does not, then the accused can seek a **directed verdict of acquittal**, whereby the judge simply instructs the jury to acquit. In other words, the case need not be adjudicated on its merits, because it is obvious that one of the parties (the Crown) can’t win due to a lack of evidence.

As we have seen, the evidentiary burden is simply a burden to muster enough evidence to show that an issue ought to be considered. It is not a burden to ‘win’ on that issue. It could well be that there is enough evidence to get a particular defence onto the table; but, when we look carefully at all the evidence, it is ambiguous. In this case, we need to know on which side to err. Which side are we going to favour if the evidence proves not to be decisive and we are left in doubt? This is where the **legal burden** comes into play. The legal burden tells us

which party will win by default if the evidence doesn't resolve the matter decisively.

There are two things to note here. First, it is possible for one party to bear the evidentiary burden with respect to a given issue, while the other party bears the legal burden. Indeed, this is generally the case with defences: the accused bears the evidentiary burden of showing that there is enough evidence for a substantive defence to be considered; but, as a general rule, once a substantive defence is in play, the Crown must point to evidence to disprove it in order to prove guilt beyond a reasonable doubt. This is so because the accused benefits from the **presumption of innocence**, and the Crown has a corresponding burden to prove the defendant's guilt beyond a reasonable doubt. If there is uncertainty about whether the defence ought to succeed (for example, if we are uncertain about whether or not the accused was truly acting in self-defence), then we have, in effect, a reasonable doubt about the accused's guilt (insofar as we believe that the accused *could* have been acting in self-defence). In that case, the Crown has not discharged its burden to prove guilt beyond a reasonable doubt, and so the presumption of innocence is intact, and the accused must be acquitted.

Second, the legal burden tells us *who* has the burden of proving a given issue; but we also need to consider *how much* evidence that party needs to produce in order to succeed. As a general rule, if the legal burden falls on the Crown, then the issue must be proved **beyond a reasonable doubt**. (The "beyond a reasonable doubt" standard is explained in *R. v. Lifchus*, one of our assigned cases.) As a general rule, if the legal burden falls on the accused, then she must prove the issue **on the balance of probabilities** in order to succeed. In other words, she needs to convince the trier of fact that it is *more likely than not* that the issue should be resolved in her favour. We can chart this all out as follows:

Legal burden on the Crown	Presumption in favour of the accused <i>(the presumption of innocence)</i>	Crown must prove <i>beyond a reasonable doubt</i> , or the defence wins the issue by default
Legal burden on the accused	Presumption in favour of the Crown	Defence must prove <i>on the balance of probabilities</i> , or the Crown wins the issue by default

Recall that, by virtue of the presumption of innocence, the legal burden usually falls on the Crown. In other words, the legal burden only falls on the accused in exceptional cases. In those exceptional cases, we say there is a "**reverse onus**": the onus, or burden, has been reversed and placed onto the accused. Whenever

there is a reverse onus, it constitutes a *prima facie* infringement on the accused's s. 11(d) *Charter* right to be presumed innocent – though that infringement *may* be justified under s. 1 of the *Charter*, in which case it can continue to operate. The *Criminal Code* used to contain far more “reverse onus” provisions, but many were removed by the sweeping reforms enacted by Bill C-75, which came into force in 2019. Some reverse onus provisions remain, however, and a few are listed as examples you can reference at S&C 176 (15th edition only).

Finally, although the legal burden is almost always on the Crown, there may nevertheless be a **tactical burden** on the accused. A tactical burden is *not* a burden imposed by law. It is entirely informal and unofficial. The “tactical burden” refers, in essence, to the pressure a party feels to adduce evidence, not because they are legally obligated to do so, but because it would be strategically disadvantageous for them not to. Thus, for example, the accused may not have a legal burden to introduce any evidence whatsoever, but they might realize that, if they exercise their right not to call any evidence, then they will likely be convicted given the strength of the Crown's evidence. The accused will therefore feel a tactical burden to present evidence to increase her chances of an acquittal, even though the legal burden is entirely on the Crown.